

25NWCV01058 25NWCV01058

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-02

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Case Number: 25NWCV01058 Hearing Date: July 2, 2026 Dept: P

VIKINGLAW RUG

GROUP. LTD. v. PH BUSINESS & CONSULTING, INC.

CASE NO.: 25NWCV01058

HEARING: 07/02/2026 @ 9:30 AM

#8

TENTATIVE ORDER

Plaintiff Vikinglawe Rug Group Co., Ltd.'s motions to compel Defendant PH Business & Consulting, Inc. to provide further responses to special interrogatories, set one; form interrogatories, set one; and requests for production, set one are MOOT.

Moving party to give notice.

Plaintiff Vikinglawe Rug Group Co., Ltd. (Plaintiff) moves to compel Defendant PH Business & Consulting, Inc. (Defendant) to provide further responses to (1) special interrogatories (SROGs), set one; (2) form interrogatories (FROGs), set one; and (3) requests for production (RPDs), set one.

Background

On March 26, 2025, Plaintiff filed this breach of contract action against Defendant and Does 1 through 50. The complaint alleges the

following: on February 14, 2026, Plaintiff and Defendant entered into a service agreement (Agreement) by which Defendant agreed to act as Plaintiff's agent for services related to transportation of certain goods from China to a delivery warehouse designated by Plaintiff. (Complaint, ¶ 10.) After the clearance of the goods by U.S. Customs and Border Protection, Plaintiff discovered that the customs duties charged were lower than expected and became suspicious that Defendant did not fulfill its documentation obligations. (Complaint, ¶ 16.) After the goods were cleared and released, Defendant misappropriated the goods to an unknown location and demanded Plaintiff pay fees, representing the amount that Plaintiff enjoyed as a result of lower customs duties. (Complaint, ¶ 19.) The complaint alleges that Defendant is holding the goods hostage. (Complaint, ¶ 21.)

The complaint asserts nine causes of action: (1) Breach of Contract; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Breach of Fiduciary Duty; (4) Fraud; (5) Conversion; (6) Trespass to Chattels; (7) Tortious Interference with Prospective Economic Advantage; (8) Replevin / Claim and Delivery; and (9) Violation of California Penal Code 496(a)-(c).

Discussion

The motions to compel further discovery shall be accompanied by meet and confer declarations. (See Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

Plaintiff's counsel states that after sending meet and confer letters, the parties agreed to meet and confer via a telephonic meeting on February 6, 2026. (Khojayan Decl., ¶¶ 5-8.) However, Plaintiff's counsel states that the parties were not able to meet and confer because "when Plaintiff's counsel called Defendant's counsel at the prearranged time, Defendant's counsel did not respond to phone calls. Further attempts to get in touch with Defendant's counsel were unsuccessful." (Khojayan Decl., ¶ 8.)

In a consolidated opposition, Defendant argues that these motions should be denied or continued on the grounds that the motions are premature and because Plaintiff failed to meet and confer in good faith. Defense counsel recounts that on the date the parties arranged to meet and confer: "I

was ready for the call and tried to connect with Plaintiff's counsel, Henry Li. I understood that the call would take place through a video meeting invitation, and I was waiting to receive that invitation. Mr. Li expected me to call his cell phone directly. We exchanged text messages in real time that evening. I told Mr. Li that I was waiting for the meeting invitation, asked whether he was still available, and let him know that my call to him had gone to voicemail." (Ouyang Decl., ¶ 6.) Defense counsel states that he placed seven calls to Plaintiff's counsel on that date, none of which connected. (Ouyang Decl., ¶ 7, Exh. E.) After, the parties did not reschedule the call and Plaintiff filed these motions six days later. (Ouyang Decl., ¶ 9.)

Moreover, defense counsel states that "Defendant is preparing second supplemental responses to all three sets of discovery and will serve them on or before June 24, 2026. These responses will address the items Plaintiff identified in its January 15, 2026 letter." (Ouyang Decl., ¶ 10.)

In reply, Plaintiff's counsel confirms that "[o]n June 24, 2026 Defendant served supplemental responses to Plaintiff's discovery." (Khojayan Decl., ¶ 2.)

Here, it appears that Plaintiff failed to meet and confer in good faith prior to this hearing. While the Court notes Plaintiff's attempts and Defendant's failure to pick up the initial call, Plaintiff does not explain why it could not return Defendant's seven subsequent calls on the same date or reschedule. Some issues raised in this briefing, such as extensions and the untimely responses could have been resolved through informal means. "The meet and confer "rule is designed 'to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order....' [Citation]. This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1016, citations omitted.)

Separately, based on Defendant providing untimely responses prior to this hearing date, the arguments raised in Plaintiff's motions and the responses addressed in Plaintiff's separate statements are now moot. Plaintiff is not precluded from filing motions to compel further based on the current responses.

Accordingly, Plaintiff's motions to compel further responses to form interrogatories, set one; special interrogatories, set one; and requests for production, set one are MOOT.